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Filing date: **07/01/2022**

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

Proceeding no.	91270181
Party	Defendant SageForth Psychological Services, LLC
Correspondence address	THOMAS DUNLAP DUNLAP BENNETT & LUDWIG PLLC 211 CHURCH ST SE LEESBURG, VA 20175 UNITED STATES Primary email: trademarks@dbllawyers.com Secondary email(s): abutterman@dbllawyers.com 855-705-6414
Submission	Answer and Counterclaim
Filer's name	Alexander Butterman
Filer's email	abutterman@dbllawyers.com, fpanjshiri@dbllawyers.com, litiga-tion@dbllawyers.com, dludwig@dbllawyers.com
Signature	/Alex Butterman/
Date	07/01/2022
Attachments	55228-003 ttabvue-91270181- 1stAmndAnswr cntrclms.pdf(278026 bytes)

Registration subject to the submission

Registration no.	5891689	Registration date	10/22/2019
Register	Principal		
Registrant	Sage Therapeutics, Inc. 215 FIRST STREET CAMBRIDGE, MA 02142 UNITED STATES		

Goods/services subject to the submission

Class 005. First Use: Jul 30, 2019 First Use In Commerce: Jul 30, 2019 All goods and services in the class are requested, namely: House mark for pharmaceutical prepara-tions

Grounds for cancellation

No use of mark in commerce before application, amendment to allege use, or statement of use was due	Trademark Act Sections 14(1) and 1(a), (c), and (d)
Other	Partial non-use under Trademark Act Section 18, 15 U.S.C. § 1068

Registration subject to the submission

Registration no.	6300552	Registration date	03/23/2021
Register	Principal		
Registrant	Sage Therapeutics, Inc.		

	215 FIRST STREET CAMBRIDGE, MA 02142 UNITED STATES Email: TrademarkOwner4362@sunsteinlaw.com

Goods/services subject to the submission

Class 005. First Use: Jul 30, 2019 First Use In Commerce: Jul 30, 2019 All goods and services in the class are requested, namely: House mark for pharmaceutical preparations

Grounds for cancellation

No use of mark in commerce before application, amendment to allege use, or statement of use was due	Trademark Act Sections 14(1) and 1(a), (c), and (d)
Other	Partial non-use under Trademark Act Section 18, 15 U.S.C. § 1068

Registration subject to the submission

Registration no.	6365035	Registration date	05/25/2021
Register	Principal		
Registrant	Sage Therapeutics, Inc. 215 FIRST STREET CAMBRIDGE, MA 02142 UNITED STATES Email: TrademarkOwner4362@sunsteinlaw.com		

Goods/services subject to the submission

Class 005. First Use: Dec 20, 2019 First Use In Commerce: Dec 20, 2019 All goods and services in the class are requested, namely: house mark for pharmaceutical preparations

Grounds for cancellation

No use of mark in commerce before application, amendment to allege use, or statement of use was due	Trademark Act Sections 14(1) and 1(a), (c), and (d)
Other	Partial non-use under Trademark Act Section 18, 15 U.S.C. § 1068

Registration subject to the submission

Registration no.	6435109	Registration date	07/27/2021
Register	Principal		
Registrant	Sage Therapeutics, Inc. 215 FIRST STREET CAMBRIDGE, MA 02142 UNITED STATES Email: TrademarkOwner4362@sunsteinlaw.com		

Goods/services subject to the submission

Class 005. First Use: Dec 20, 2019 First Use In Commerce: Dec 20, 2019

All goods and services in the class are requested, namely: house mark for pharmaceutical preparations

Grounds for cancellation

No use of mark in commerce before application, amendment to allege use, or statement of use was due	Trademark Act Sections 14(1) and 1(a), (c), and (d)
Other	Partial non-use under Trademark Act Section 18, 15 U.S.C. § 1068

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

In the Matter of Application Serial No. 88881642
For the mark: SAGEFORTH (standard character)
Filed: April 21, 2020
Published:
March 2, 2021

Sage Therapeutics, Inc., Opposer, v. SageForth Psychological Services, LLC, Applicant.	) Opposition No.: 91270181) **Our Docket: 55228-003**

Hon. Commissioner for Trademarks
P.O. Box 1451
Alexandria, VA 22313-1451
BOX TTAB NO FEE

APPLICANT'S FIRST AMENDED ANSWER AND COUNTERCLAIMS TO NOTICE OF OPPOSITION TO PARTIALLY CANCEL PETITIONER'S PLEADED REGISTRATION NOS. 5891689, 6300552, 6365035 and 6435109

Applicant SageForth Psychological Services, LLC ("Applicant"), by and through its attorneys, hereby answers the allegations set forth in the Notice of Opposition as follows:

As and for the specific Answer to the specific allegations in the unnumbered, introductory paragraph of the Notice of Opposition, Applicant is without knowledge or information sufficient to form a belief as to the truth of the allegations and information insofar as it relates to the name, entity type, location and beliefs of Opposer, Sage Therapeutics, Inc. ("Opposer"), and therefore denies said allegations. Applicant denies that Opposer is or will be damaged by the registration of Applicant's trademark application, No. 88881642 ("Opposed Application") for the standard character mark SAGEFORTH ("Applicant's Mark").

1. Applicant admits the allegations in Paragraph 1 of the Notice of Opposition to the extent that it accurately reflects the application record on file in the U.S. Patent and Trademark Office ("USPTO"). Applicant states that the Application speaks for itself and is automatically of record in the Opposition.

2. Applicant lacks sufficient information to admit or deny the factual allegations in Paragraph 2 of the Notice of Opposition, and on that basis, denies them.

3. Applicant lacks sufficient information to admit or deny the factual allegations in Paragraph 3 of the Notice of Opposition, and on that basis, denies them.

a. Applicant denies the factual allegations in Paragraph 3a of the Notice of Opposition.

b. Applicant denies the factual allegations in Paragraph 3b of the Notice of Opposition.

c. Applicant denies the factual allegations in Paragraph 3c of the Notice of Opposition.

d. Applicant denies the factual allegations in Paragraph 3d of the Notice of Opposition.

e. Applicant denies the factual allegations in Paragraph 3e of the Notice of Opposition.

f. Applicant denies the factual allegations in Paragraph 3f of the Notice of Opposition.

4. Applicant lacks sufficient information to admit or deny the factual allegations in Paragraph 4 of the Notice of Opposition, and on that basis, denies them.

5. Applicant lacks sufficient information to admit or deny the factual allegations, and cannot comprehend the ambiguous reference to "relevant goods and services," in Paragraph 5 of the Notice of Opposition, and therefore denies these allegations.

6. Applicant denies the allegations in Paragraph 6 of the Notice of Opposition.

7. Applicant denies the allegations in Paragraph 7 of the Notice of Opposition.

8. Applicant denies the allegations in Paragraph 8 of the Notice of Opposition.

The remainder of the allegations in the Notice of Opposition being merely prayers for relief requires no response. Notwithstanding, Applicant denies that Opposer is entitled to any relief whatsoever against it. Except as expressly stated above, Applicant denies any and all other allegations contained in the Notice of Opposition.

AFFIRMATIVE DEFENSES

By way of further answer, Applicant alleges and asserts the following defenses in response to the allegations contained in the Notice. In this regard, Applicant undertakes the burden of proof only as to those defenses that are deemed affirmative defenses by law, regardless of how such defenses are denominated in the instant Answer. Applicant reserves the right to assert other affirmative defenses as this opposition proceeds based upon further discovery, legal research, or analysis that may supply additional facts or lend new meaning or clarification to Opposer's claims that are not apparent on the face of the Notice.

AFFIRMATIVE DEFENSE NO. 1

Opposer's Notice of Opposition fails to state a claim upon which relief can be granted.

AFFIRMATIVE DEFENSE NO. 2

Opposer lacks entitlement to a statutory cause of action," i.e. standing.

AFFIRMATIVE DEFENSE NO. 3

Opposer has not and will not be damaged by the registration of the Applicant's Mark in the Application because there is no likelihood of confusion concerning Applicant's Mark and the marks asserted by the Opposer. Applicant's Mark SAGEFORTH bears no resemblance to, and is clearly distinguishable from, the marks asserted by Opposer which share only the SAGE term with Applicant's Mark and are combined with a readily distinguishable second term.

AFFIRMATIVE DEFENSE NO. 4

Third Party Registrations and Marks. The SAGE term in the Opposer's pleaded registrations upon which Opposer apparently bases its allegation of confusing similarity with the Applicant's Mark in the Opposed application is common, commercially weak and not sufficiently distinctive to prevent the registration of other marks containing the SAGE term in the healthcare, pharmaceutical and therapy fields of goods and services. Attached **Exhibit A**[1] identifies 40 live, federally registered, use-based registrations that feature the SAGE formative and cover some healthcare or product service related to the goods and services of either Opposer or the Applicant.

Third-party registrations may be relevant to show that a mark or a portion of a mark is descriptive, suggestive, or so commonly used that the public will look to other elements to distinguish the source of the goods or services. *See, e.g.*, *In re Hartz Hotel Servs., Inc.*, 102 USPQ2d 1150, 1153-54 (TTAB 2012); *In re Melville Corp.*, 18 USPQ2d 1386, 1388 (TTAB 1991); *In re Dayco Products-Eaglemotive Inc.*, 9 USPQ2d 1910, 1911-12 (TTAB 1988); *Plus Prods. v. Star-Kist Foods, Inc.*, 220 USPQ 541, 544 (TTAB 1983). If the evidence establishes that the consuming public is exposed to third-party use of similar marks on similar goods, it "is relevant to show that a mark is relatively weak and entitled to only a narrow scope of protection." *Palm Bay Imps., Inc. v. Veuve Clicquot Ponsardin Maison Fondee en 1772*, 396 F.3d 1369, 1373-74, 73

1 Exhibit A is not being reattached to the **permitted** filing of the First Amended Answer and Counterclaims. It is attached to the original Answer and to the Motion for Leave to File the subject pleading. Applicant acknowledges this exhibit would not be evidence of record.

USPQ2d 1689, 1693 (Fed. Cir. 2005). Properly used in this limited manner, third-party registrations are similar to dictionaries showing how language is generally used. *See, e.g., Tektronix, Inc. v. Daktronics, Inc.*, 534 F.2d 915, 917, 189 USPQ 693, 694-95 (C.C.P.A. 1976); *In re J.M. Originals Inc.*, 6 USPQ2d 1393, 1394 (TTAB 1987); *United Foods Inc. v. J.R. Simplot Co.*, 4 USPQ2d 1172, 1174 (TTAB 1987). As such, other terms in Opposer's and Applicant's marks will distinguish the marks for their relevant consumers, namely the word THERAPEUTICS in Opposer's Mark and the FORTH term in the Applicant's Mark.

AFFIRMATIVE DEFENSE NO. 5

Opposer has failed to police the market and has allowed the proliferation of numerous SAGE formative marks in the healthcare market and is thereby estopped from claiming and enforcing any rights against the SAGE formative mark of the Applicant. Opposer's mark entitled to only limited protection.

AFFIRMATIVE DEFENSE NO. 6

Opposer has not and will not be damaged by the registration of the Applicant's Mark because Opposer's pharmaceutical preparations and related pharmaceutical services are completely different from, unrelated to and travel in entirely different channels of trade with the psychological and psychotherapy services recited in the opposed application. The consumers of Opposer's goods and services, namely healthcare providers, practices and pharmacies, are not the same consumers of Applicant's services, namely patients themselves, and the two groups of consumers do not at all overlap. In fact, as a provider of purely psychological services, not psychiatric services, Applicant's practice does not involve any prescriptions, information or discussion about medications.

AFFIRMATIVE DEFENSE NO. 7

Applicant's psychological, psychoeducational, psychotherapy, and purely behavioral therapy services which exclude treatment of post-partum depression are completely different and unrelated to Opposer's "pharmaceutical preparations," pharmaceutical research services and health and medical information services which are focused solely on post-partum depression.

AFFIRMATIVE DEFENSE NO. 8

Sophisticated Purchasers. Both the services of the Applicant and the goods and services of the Registrant target sophisticated, deliberate consumers and involve services offered by the most highly trained professionals, typically doctors, to customers that decide extremely deliberately about the consumption of Applicant's and Opposer's goods and services, thereby further minimizing any likelihood of confusion.

Applicant respectfully requests that the Notice of Opposition be dismissed by the Trademark Trial & Appeal Board and that Applicant's application be permitted to proceed to registration.

Dated: March 1, 2022

Respectfully submitted,

SAGEFORTH PSYCHOLOGICAL SERVICES, LLC
By: /s/Alex Butterman
Alexander Butterman
Mr. Farzad Panjshiri
Attorneys for Applicant
DUNLAP BENNETT & LUDWIG PLLC
211 Church Street, SE
Leesburg, Virginia 20175
Phone: 855-705-6414
Fax: 855-226-8791
abutterman@dbllawyers.com;
fpanjshiri@dbllawyers.com;
litigation@dbllawyers.com

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

In the Matter of Application Serial No. 88881642
For the mark: SAGEFORTH (standard character)
Filed: April 21, 2020
Published:
March 2, 2021

Sage Therapeutics, Inc., Opposer, v. SageForth Psychological Services, LLC, Applicant.	) Opposition No.: 91270181) **Our Docket: 55228-003**

Hon. Commissioner for Trademarks
P.O. Box 1451
Alexandria, VA 22313-1451
BOX TTAB NO FEE

APPLICANT'S COUNTERCLAIMS TO NOTICE OF OPPOSITION TO PARTIALLY CANCEL PETITIONER'S PLEADED REGISTRATION NOS. 5891689, 6300552, 6365035 and 6435109[1]

Pursuant to 37 C.F.R. Section 2.114(b)(3) and Section 313.01 of the Trademark Trial and Appeal Board Manual of Procedure, Applicant SageForth Psychological Services, LLC ("Applicant"), by counsel, files this counterclaim to partially cancel the following asserted registered marks of Opposer, Sage Therapeutics, Inc., ("Opposer"), pursuant to Trademark Act Section 18, 15 U.S.C. § 1068, and avers as follows:

1. SageForth Psychological Services, LLC is a Virginia limited liability company and owner of U.S. Application No. 88881642 ("SageForth Application") that is presently the subject of Opposition No. 91270181 filed by Sage Therapeutics, Inc., a Delaware corporation, on June 29, 2021. The SageForth Application recites the following services:

[1] At the time the Notice of Opposition was filed, Reg. No. 6435109 was not yet registered and was asserted in the Notice as Applic. Ser. No. 88516780

> "Psychological consultation; Psychological testing; Psychotherapy services; Psychological assessment services for children, adolescents, adults, and families; Psychological services, namely, providing diagnostic and psychotherapy services to children, adolescents, adults, and families; Family psychotherapy and group psychotherapy; Psychological assessments, namely, personality assessments for psychological purposes, school admissions testing, psychoeducational testing for diagnostic and treatment purposes; Pre-operative psychological assessments; Addiction treatment services in the field of medication abuse, technology addictions, substance use and substance abuse, and food addictions; Anti-smoking and anti-vaping therapy; Art therapy; Mental health counseling and psychotherapy as it relates to relationships. Social skills psychotherapy. Psychotherapy and psychotherapy counseling for children and adults in individual, group, and family sessions; Play therapy; Providing information in the field of psychological counseling, assessments, diagnosis, and treatment; Stress reduction therapy; coping skills therapy; Psychological services, namely, providing therapeutic services to children and their families; Mental health assessments; School admissions psychological testing; private school admissions psychological testing" in Class 44.

2. Opposer claims ownership of, and asserts against Applicant, U.S. Registration No. 5891689 ("689 Registration") for the mark SAGE THERAPEUTICS and Colorless Design for use in connection with "House mark for pharmaceutical preparations" in class 5 which issued on October 22, 2019.

3. Opposer claims ownership of, and asserts against Applicant, U.S. Registration No. 6300552 ("552 Registration") for the standard character SAGE THERAPEUTICS mark in connection with "House mark for pharmaceutical preparations" in class 5 which issued on March 23, 2021.

4. Opposer claims ownership of, and asserts against Applicant, U.S. Registration No. 6365035 ("035 Registration") for the mark SAGE THERAPEUTICS and Colorless Design for use in connection with "House mark for pharmaceutical preparations" in class 5 which issued on May 25, 2021.

5. Opposer claims ownership of, and asserts against Applicant, U.S. Registration No. 6435109 ("109 Registration") for SAGE THERAPEUTICS and Color Design for use in connection with "House mark for pharmaceutical preparations" in class 5 which issued on July 27, 2021.

6. Applicant's standing to partially cancel each of the registrations of Opposer alleged in Paragraphs One through Four (hereinafter referred to as "Sage House Marks") is inherent and understood because Opposer has asserted these four Sage House Marks against Applicant in an opposition opposing the SageForth Application based upon alleged likelihood of confusion with the Sage House Marks.

7. Registrant utilizes all of the Sage House Marks on only one pharmaceutical preparation, named "Zulresso" which specifically and only treats post-partum depression through intravenous administration in an inpatient setting.

8. All of the specimens of record submitted in the Sage House Marks showed use of the mark on the same boxes or bottles of the specific Zulresso medication as administered in drug trials for this single pharmaceutical. See attached **Exhibit 1**. The specimen set for each registration comprising the Sage House Marks also contained a chart entitled, "Pipeline: Advancing a Leading Brain Health Portfolio" which appears to list additional pharmaceutical preparations of Opposer that treat "brain health" ailments other than post-partum depression, but this chart is mere advertising for goods and does not demonstrate any actual, Lanham Act defined use of the registered mark on any goods.

9. With the exception of the aforementioned "Pipeline" chart specimen that Opposer submitted to the USPTO in its Sage House Mark registrations, which is not evidence of use of the Sage House Mark in U.S. Commerce, all of Opposer's discovery responses discuss or reference only Opposer's Zulresso pharmaceutical product and only the treatment of post-partum depression using its Zulresso pharmaceutical. Moreover, on the "Our Medicines" page of Opposer's website, at https://www.sagerx.com/our-medicines (Feb. 26, 2022), only the Zulresso medication is listed.

10. A June 9, 2020 article from Fool.com corroborates that Zulresso is Opposer's only commercialized product at the present time when it states, "Unfortunately, most of Sage's clinical

investigations have either encountered setbacks or are in early-stage clinical trials. This places a lot of burden on Sage's **only commercialized product**, Zulresso, to justify the value of its stock." See "Is There Any Hope Left for Sage Therapeutics?" *The Motley Fool* https://www.fool.com/investing/2020/06/09/is-there-any-hope-left-for-sage-therapeutics.aspx (viewed on Feb. 26, 2022) (emphasis added). See attached **Exhibit 2**.

11. Consequently, in registering the Sage House Marks, Opposer has demonstrated use of its Sage House Marks on only pharmaceutical preparations that treat post-partum depression. Opposer has not used its Sage House Marks on pharmaceutical preparations in general, without further limitation, as suggested by the "House mark for pharmaceutical preparations" recitation. Therefore, Opposer's recitations in its Sage House Marks that read, "House mark for pharmaceutical preparations" is overbroad, inaccurate, and encompasses pharmaceutical preparations for which the Sage House Marks are not used in U.S. Commerce.

12. The definition of a "house mark" is a mark that identifies a "provider of a wide variety of goods or services," and in a use-based application for registration of a house mark, the applicant must demonstrate that the mark is, in fact, used as a house mark. See TMEP § 1402.03(b). Opposer's use of its Sage House Marks on only one specific medication for treating post-partum depression does not constitute use as a "House mark for pharmaceutical preparations." As such, the Sage House Marks cannot be allowed to continue reciting their goods as "a house mark for pharmaceutical preparations" without qualifying at least that the pharmaceutical preparations are for treatment of post-partum depression.

13. In an opposition proceeding in which each party's marks, SAGE THERAPEUTICS and SAGEFORTH, are not identical, accurate construction of each party's goods and services is critical because if the goods and services are considered sufficiently similar or related, a likelihood of confusion may be found in spite of the differences in the marks.

14. In an opposition proceeding in which the channels of trade for each party's goods and services are significantly different, accurately reciting each party's goods and services and their respective trade channels is critical because if the goods and services are considered sufficiently similar or overlapping, a likelihood of confusion may be found despite significant differences in the channels of trade. Applicant is providing outpatient professional psychotherapy and psychological services directly to individual patients without any pharmaceutical treatment and which do not include post-partum depression. Opposer is manufacturing a prescription pharmaceutical preparation that specifically treats only post-partum depression and requires intravenous administration in an in-patient setting.

FIRST COUNTERCLAIM FOR PARTIAL CANCELLATION OF REGISTRATION NO. 5891689

15. Applicant incorporates Paragraphs 1 – 14 herein.

16. In the subject case, Opposer is asserting the 689 registration covering "house mark for pharmaceutical preparations" in order to claim that its registered mark should be construed as encompassing use on a wide variety of pharmaceutical preparations that treat many different disorders, including possibly disorders that cross over into the psychotherapy space, yet this construction would be incorrect because the reality is that the 689 registration is used only on pharmaceutical preparations that treat post-partum depression through intravenous administration.

17. Thus, the 689 registration recites goods that are broader than its actual usage in order to contend that the goods in the 689 registration encompass or are sufficiently related to the Applicant's services and to mask clear differences in each party's marks and the channels of trade of each party's goods and services.

18. The goods listed in the 689 registration need to be amended to be limited to specifically "house mark for pharmaceutical preparations that treat post-partum depression," as

the mark is actually used. That amended recitation will avoid finding a likelihood of confusion with psychological and psychotherapy services that do not prescribe pharmaceuticals and do not treat post-partum depression.

SECOND COUNTERCLAIM FOR PARTIAL CANCELLATION OF REGISTRATION NO. 6300552

19. Applicant incorporates Paragraphs 1 – 14 herein.

20. In the subject case, Opposer is asserting the 552 registration covering "house mark for pharmaceutical preparations" in order to claim that its registered mark should be construed as encompassing use on a wide variety of pharmaceutical preparations that treat many different disorders, including possibly disorders that cross over into the psychotherapy space, yet this construction would be incorrect because the reality is that the 552 registration is used only on pharmaceutical preparations that treat post-partum depression through intravenous administration.

21. Thus, the 552 registration recites goods that are broader than its actual usage in order to contend that the goods in the 552 registration encompass or are sufficiently related to the Applicant's services and to mask clear differences in each party's marks and the channels of trade of each party's goods and services.

22. The goods listed in the 552 registration need to be amended to be limited to specifically "house mark for pharmaceutical preparations that treat post-partum depression," as the mark is actually used. That amended recitation will avoid finding a likelihood of confusion with psychological and psychotherapy services that do not prescribe pharmaceuticals and do not treat post-partum depression.

THIRD COUNTERCLAIM FOR PARTIAL CANCELLATION OF REGISTRATION NO. 6365035

23. Applicant incorporates Paragraphs 1 – 14 herein.

24. In the subject case, Opposer is asserting the 035 registration covering "house mark for pharmaceutical preparations" in order to claim that its registered mark should be construed as encompassing use on a wide variety of pharmaceutical preparations that treat many different disorders, including possibly disorders that cross over into the psychotherapy space, yet this construction would be incorrect because the reality is that the 035 registration is used only on pharmaceutical preparations that treat post-partum depression through intravenous administration.

25. Thus, the 035 registration recites goods that are broader than its actual usage in order to contend that the goods in the 035 registration encompass or are sufficiently related to the Applicant's services and to mask clear differences in each party's marks and the channels of trade of each party's goods and services.

26. The goods listed in the 035 registration need to be amended to be limited to specifically "house mark for pharmaceutical preparations that treat post-partum depression," as the mark is actually used. That amended recitation will avoid finding a likelihood of confusion with psychological and psychotherapy services that do not prescribe pharmaceuticals and do not treat post-partum depression.

FOURTH COUNTERCLAIM FOR PARTIAL CANCELLATION OF REGISTRATION NO. 6435109

27. Applicant incorporates Paragraphs 1 – 14 herein.

28. In the subject case, Opposer is asserting the 109 registration covering "house mark for pharmaceutical preparations" in order to claim that its registered mark should be construed as encompassing use on a wide variety of pharmaceutical preparations that treat many different disorders, including possibly disorders that cross over into the psychotherapy space, yet this construction would be incorrect because the reality is that the 109 registration is used only on pharmaceutical preparations that treat post-partum depression through intravenous administration.

29. Thus, the 109 registration recites goods that are broader than its actual usage in order to contend that the goods in the 109 registration encompass or are sufficiently related to the Applicant's services and to mask clear differences in each party's marks and the channels of trade of each party's goods and services.

30. The goods listed in the 109 registration need to be amended to be limited to specifically "house mark for pharmaceutical preparations that treat post-partum depression," as the mark is actually used. That amended recitation will avoid finding a likelihood of confusion with psychological and psychotherapy services that do not prescribe pharmaceuticals and do not treat post-partum depression.

WHEREFORE, Applicant respectfully requests that Registration Nos. 5891689, 6300552, 6365035 and 6435109 be partially cancelled, and limited to specify "house mark for pharmaceutical preparations ***that treat post-partum depression***," or as the Trademark Trial and Appeal Board sees fit to amend.

Dated: March 1, 2022

Respectfully submitted,

SAGEFORTH PSYCHOLOGICAL SERVICES, LLC
By: /s/Alex Butterman
Alexander Butterman
Mr. Farzad Panjshiri
Attorneys for Applicant
DUNLAP BENNETT & LUDWIG PLLC
211 Church Street, SE
Leesburg, Virginia 20175
Phone: 855-705-6414
Fax: 855-226-8791
abutterman@dbllawyers.com
fpanjshiri@dbllawyers.com
litigation@dbllawyers.com

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

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Hon. Commissioner for Trademarks
P.O. Box 1451
Alexandria, VA 22313-1451
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CERTIFICATE OF SERVICE

I hereby certify that a true and complete copy of the Applicant's Motion to Amend Answer and Proposed First Amended Answer and Counterclaims has been served by email on counsel for the Opposer, Sage Therapeutics, Inc., by emailing said copy on this 1st day of March 2022, to:

Lisa M. Tittemore
Kevin R. Mosier
SUNSTEIN LLP
100 High Street
Boston, Massachusetts 02110-2321
(617) 443-9292
ltittemore@sunsteinlaw.com
kmosier@sunsteinlaw.com

/s/Alex Butterman
Alexander Butterman